

admitted that Plaintiff/Cross-Defendant did not borrow \$55,000 from Defendant/Cross-Complainant and that Defendant unjustly influenced, forced, and threatened Plaintiff to sign a promissory note. (RFAs to Defendant/Cross-Complainant, Set One, Request Nos. 3,4.) Defendant/Cross-Complainant also admitted that Plaintiff complied with the promissory note and he breached his obligations under that same note. (*Id.* at Nos. 7,8.) Finally, Defendant/Cross-Defendant admitted that he caused to be drafted the Promissory Note as alleged in Plaintiff's complaint. (*Id.* at No. 14.)

Plaintiff/Counter-Defendant has met his initial burden to show he is entitled to summary judgment on his third cause of action for breach of contract. Defendant/Counter-Complainant did not oppose the motion and did not raise a triable issue as to any material fact. Accordingly, Plaintiff's unopposed motion is granted as to his third cause of action for breach of contract.

17. 9:00 AM CASE NUMBER: MSC21-00588

CASE NAME: SHARMA VS. ARS ALEUT CONSTRUCTION

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES BY DEFENDANT SITECH NORCAL INC.**

FILED BY: SHARMA, SHALINI

TENTATIVE RULING:

Plaintiff was injured while operating a "motor grader" on a construction site called "MOTCO" (short for Military Ocean Terminal Concord), in August of 2020. He alleges that Sitech Norcal was responsible for, but negligently performed, maintenance of the grader.

Plaintiff moves to compel further responses by Sitech Norcal to Special Interrogatories 19, 20, 21, and 23. The interrogatories are as follows: Special interrogatories 19 (employee contact information for those who serviced, inspected or installed large earthmoving equipment in August 2020) , response is that customer information is confidential; 20 (employee contact information for employees who went to MOTCO in August 2020) (same response as 19); 21 (employee contact information on those who were involved in servicing, renting, leasing or installing any equipment used at MOTCO in August 20 (same response as 19), 23 (employee contact information for those who have knowledge about any person going to MOTCO with a GPS module on August 20, 2020 (same response as 19).

Sitech contends that using the entire month of August is overbroad, because the accident occurred on only one day. This is not a valid objection, given that maintenance of the equipment might have happened on days other than the incident. The month in which the accident occurred is a reasonable time period for the interrogatories. Nor is the reference to number 19 adequate, because it asks for a potentially different class of employees and the answer simply asserted that the information is confidential.

In addition, Sitech amended its responses to number 20, 21, and 23 on January 23, 2026. The amended response is attached as Exhibit G to counsel's declaration. The amended responses to 20 and 21 refer to the previous answer to 19. The amended response to 23 states that Sitech is investigating and will supplement later. These are not materially different, given that the

interrogatories were served in June of last year.

Plaintiff requests sanctions against Sitech of \$3,200. Sitech claims that its objections were valid. It further claims that sanctions are limited to “misuse of the discovery process under Code of Civil Procedure section 2030.030. That section, however, concerns the more general sanctions authority for abusive conduct. More specifically section 2030.300(d) provides that the “court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposed a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

Nor is the sanction request affected by the fact that an Amended response was served. Rule of Court 3.1348(a) specifically addresses this situation, providing: “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” Failure to oppose or filing of a supplemental response “shall not be deemed an admission that the motion was proper or that sanctions should be awarded.” (CRC 3.1348(b).)

The motion against Sitech is granted. Sitech shall provide further responses, without objection, by March 2, 2026. Sitech’s objections are not substantially justified, and sanctions in the amount of \$1,600 are awarded (based on \$400 per hour), to be paid no later than March 2, 2026.

18. 9:00 AM CASE NUMBER: MSC21-00588

CASE NAME: SHARMA VS. ARS ALEUT CONSTRUCTION

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES BY DEFENDANT PETERSON-CAT**

FILED BY: SHARMA, SHALINI

TENTATIVE RULING:

Plaintiff was injured while operating a “motor grader” on a construction site called “MOTCO” (short for Military Ocean Terminal Concord), in August of 2020. He alleges that Peterson-Cat was responsible for, but negligently performed, maintenance of the grader.

Plaintiff moves to Compel further Special Interrogatories to defendant Peterson-Cat, set 5, numbers 26, 32, 33, 37, 38, 39, 40, 41.

The interrogatories and answers are as follows:

26 (employee contact information for those who worked on, serviced, maintained or prepare graders between August 1, 2020 and January 2021), response that the individual employee, Ryan Carlisle can be contacted through counsel.

32 (type of glass by product number or SKU that was in the Grader’s right door) response that it was “tempered glass.”